

SUMMONS

Date of Filing:

Index No:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENSPlaintiff designates
X QUEENS County as
the place of Trial.

QUENTIN WILLIAMS,

Plaintiff(s), The basis of venue
is CPLR §504(3)

-against-

SUMMONS

THE CITY OF NEW YORK, New York Police
Department detective VINCENT FERRANTE,
Tax Registration #:943229, of Tactical
Narcotics Team-Queens, and JOHN DOES -
Police Officers as yet unidentified,Plaintiff's Residence:
111-50 145 Street
Jamaica, NY 11435
County of: Queens

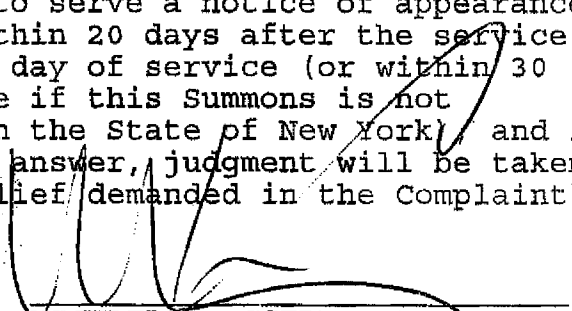
Defendant(s).

X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: April 29, 2023


MICHAEL L. CSERHALMI
MICHAEL L. CSERHALMI, P.C.
Attorney for Plaintiff(s)
38 Maple Drive
Great Neck, NY 11021
(516) 482-6633 [OFFICE]
(516) 610-6633 [CELL]
MLC6633@VERIZON.NET

Defendant's Address(es):

THE CITY OF NEW YORK
c/o SYLVIA O. HINDS-RADIX, ESQ.
Corporation Counsel
Attorney for City of New York
100 Church Street
New York, NY 10007

VINCENT FERRANTE, Tax Registration #:943229
c/o NEW YORK POLICE DEPARTMENT
1 POLICE PLAZA
NEW YORK, NY

SUPREME COURT OF THE STATE OF NEW YORK.
COUNTY OF QUEENSQUENTIN WILLIAMS,

X

VERIFIED COMPLAINT

Plaintiff(s),

-against-

THE CITY OF NEW YORK, New York Police
Department detective VINCENT FERRANTE,
Tax Registration #:943229, of Tactical
Narcotics Team-Queens, and JOHN DOES -
Police Officers as yet unidentified,

Index No:

Defendant(s).

X

Plaintiff, complaining of the Defendant(s), by his
attorneys, MICHAEL L. CSERHALMI, P.C., respectfully show to
this Court and allege as follows:

THE PARTIES

1. Upon information and belief, the plaintiff was and
still is a resident of the County of Queens, State of New York.

2. That at all times hereinafter mentioned, the
defendant, THE CITY OF NEW YORK, was and still is a municipal
corporation duly organized and existing under the laws of the
State of New York.

3. Upon information and belief, that at all times
hereinafter mentioned, THE CITY OF NEW YORK employed the police
officer(s) and others hereinafter mentioned in this complaint.

4. Upon information and belief, that at all times
hereinafter mentioned, and on or prior to February 22, 2019,
defendant New York Police Department detective VINCENT
FERRANTE, Tax Registration #:943229, of Tactical
Narcotics Team-Queens, was employed by the defendant, THE CITY

OF NEW YORK, as a police officer.

THE NOTICE OF CLAIM

5. Prior hereto and on or about July 25, 2022 the plaintiff caused a written verified notice of claim (Claim #: 2022PI027718) to be filed with and served upon the proper officers, agents and/or employees of the defendant THE CITY OF NEW YORK, pursuant to the statute in each case made and provided.

6. More than thirty (30) days have elapsed since the service of such notice of claim and adjustment or payment thereof has been neglected or refused.

BACKGROUND

7. Upon information and belief, on February 20, 2019 at 4:03 PM an unidentified male called 911. He told the 911 operator that "two people on parole have illegal firearms inside the house at 111-50 145 Street, Jamaica, NY 11435," and when asked by the 911 operator for his name he refused to disclose it.

8. Upon information and belief, based upon this anonymous 911 call, the NYPD commenced an investigation. Although on that date every 911 call is tracked to the phone number of the 911 caller, the NYPD never contacted the account holder of that phone number. The NYPD knew that they were not able to legally get a search warrant based upon an anonymous tip. Instead, based upon the allegation of "parole people inside the house" the NYPD contacted NYS parole; ascertained that plaintiff was on parole and resided at that address; and,

asked parole as a conduit for the NYPD to conduct a search of the premises.

9. Upon information and belief, on February 22, 2019, NYPD officers accompanied parole officers to the premises; a parole officer knocked on the door; plaintiff's fiancée, SHAH-LEEKA GLADDEN, who was NOT on parole, answered it and advised him that plaintiff was not home; the parole officer telephoned plaintiff and plaintiff stated that he would be home in 10-15 minutes; plaintiff arrived home within that time period; parole and police officers forced him into the dwelling through the front door without a search warrant; took him upstairs to the second floor master bedroom; searched the room; and, recovered a firearm located above a hole in the ceiling of the bedroom closet. Plaintiff and his fiancée, SHAH-LEEKA GLADDEN, were both arrested for possession of the firearm.

10. Upon information and belief, after a lengthy discovery delay, plaintiff's criminal defense counsel was given a copy of the 911 tape and the telephone number that the call came from; plaintiff and his fiancée have known BRAD McCASKELL for a substantial period of time (BRAD McCASKELL's brother, WILLIAM FREDRICK [aka FRED] McCASKELL, was the father of SHAH-LEEKA GLADDEN's child); listened to the 911 call and recognized BRAD McCASKELL's voice on the 911 call; and, recognized the phone number as that of BRAD's sister, MARY McCASKELL.

11. Upon information and belief, BRAD McCASKELL was on lifetime parole for a 1990 double homicide. In January 1990,

BRAD MCCASKELL, a neighborhood drug dealer, shot three people in Queens; pled guilty and freely and fully admitted the essential facts constituting the crime; and, was sentenced to 20 years to life in prison with lifetime parole. On appeal, his request to withdraw the plea was denied. See People v. McCaskell, 206 AD2d 547 (Second Dept. 1994).

12. Upon information and belief, after being released from prison and out on parole, BRAD MCCASKELL had numerous contacts with the fiancée, in person and by phone, and on several occasions requested the fiancée to leave plaintiff and to become romantically involved with him. The fiancée, SHAH-LEEKA GLADDEN, consistently refused.

13. Upon information and belief, on February 17, 2019, BRAD MCCASKELL stole the fiancée's housekeys during his visit to the premises; on either February 19 or February 20, while plaintiff and the fiancée were both at work and the house was empty, BRAD MCCASKELL entered the dwelling by using the stolen housekeys and planted the firearm; and, on February 20, 2019 at 4:03 PM placed the 911 call.

14. Upon information and belief, plaintiff's criminal defense counsel advised the District Attorney of the identity of the caller; the stolen housekeys; counsel's request that the DA open an investigation to include BRAD MCCASKELL as the suspect that planted the firearm; and, coupled with the fact that neither plaintiff's nor the fiancée's DNA was on the firearm, with a view towards ultimately dismissing the case. This request was refused and the case went to trial.

15. Upon information and belief, on June 24, 2022, plaintiff was acquitted of the firearm charge and the marijuana charge was dismissed as defective.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST

16. Upon information and belief, on or about Friday, February 22, 2019 at approximately 11:30 PM in front of plaintiff 's residence, 111-50 145 Street, Jamaica, NY 11435, plaintiff was arrested by New York Police Department [NYPD] police officer Detective VINCENT FERRANTE of Tactical Narcotics Team-Queens, Tax Registration #:943229, and/or other New York Police Department [NYPD] police officers whose names, shield numbers and tax registration numbers are not known to plaintiff, without probable cause, for allegedly committing the following offense(s) on the above-named date, time and location:

Penal Law §265.03(1), Criminal Possession of a Weapon in the Second Degree, a class C felony;

Penal Law §265.01-b(1), Criminal Possession of a Firearm, a class E felony;

Penal Law §221.15, Criminal Possession of Marijuana in the Fourth Degree, a class A misdemeanor; and,

Penal Law §221.05, Unlawful Possession of Marijuana, a violation and not a crime, Notwithstanding the fact that:

- a. The NYPD did not have a search warrant;
- b. Plaintiff 's DNA was not on the firearm;
- c. That the NYPD knew or should have known that the 911 call was suspicious as no information was provided as

to the caller's identity; his knowledge that the firearm was in the house; or his relationship between the caller and plaintiff and plaintiff's fiancée;

- d. That the NYPD never conducted an investigation as to the identity of the 911 caller; and,
- e. That the NYPD, knowing that plaintiff was a parolee and that they had no probable cause to search the premises without a search warrant, illegally used parole officers as a conduit to conduct the search of the premises on the pretext of a parole checkup.

17. Upon information and belief, the plaintiff was handcuffed and placed into an NYPD vehicle; transported by said vehicle to a holding cell at the 113 precinct station house; and, remained in the holding cell at the 113 precinct station house for a period of time.

18. Upon information and belief, the plaintiff was then transported to Queens Central Booking; then to Queens Criminal Court where he was arraigned; entered a plea of not guilty; bail was set at \$25,000 cash or bond; and, ordered by the court to return to court for further proceedings.

19. Upon information and belief, the plaintiff was unable to make bail and was transported to a New York City Department of Corrections [NYCDC] jail.

20. Upon information and belief, plaintiff was subsequently indicted for the following:
Penal Law §265.03(3), Criminal Possession of a Weapon in the Second Degree, a class C felony;

Penal Law §265.03(1)(b), Criminal Possession of a of a Weapon
in the Second Degree, a class C felony;

Penal Law §265.02(1), Criminal Possession of a Weapon in the
Third Degree, a class D felony;

Penal Law §265.01-b, Criminal Possession of a Firearm, a class
E felony;

Penal Law §221.05, Unlawful Possession of Marijuana, a
violation and not a crime.

21. Upon information and belief, on or about July 21,
2019, while incarcerated at the NYCDC jail, plaintiff was
strangled by another inmate [CL#2019PI027792].

22. Upon information and belief, plaintiff subsequently
made bail and was released from the NYCDC jail on or about
October 16, 2019, having been incarcerated as a result of this
arrest for approximately eight (8) months.

23. Upon information and belief, on or about June 24,
2022, plaintiff was acquitted of all of the firearm/weapons
charges and the marijuana charge was dismissed and sealed as
defective pursuant to CPL§210.20(1)(a).

24. Upon information and belief, as a result of the false
arrest, illegal imprisonment, detention and search, the
plaintiff sustained serious personal injuries, was rendered
sick, sore, lame and disabled; suffered a severe shock to
his/her nervous system and sustained severe physical pain and
mental anguish. Upon information and belief, some of said
injuries will be permanent.

25. That by reason of the foregoing, plaintiff has

suffered damages in an amount to be determined upon the trial of this action.

26. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION FOR MALICIOUS PROSECUTION

27. Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "16" through "23" with the same force and effect as if more fully and at length set forth herein.

28. Upon information and belief, that at the time the prosecution was initiated by the District Attorney of Queens County, the District Attorney did not have probable cause to believe that the plaintiff was guilty of the above-named crimes and that in initiating the prosecution, the District Attorney acted maliciously. That the police and the prosecutor knew or should have known at the moment of the plaintiff's arrest that there was no evidence that the plaintiff ever committed the aforementioned crimes on the date, time, and location in question; and, that the prosecution was brought in reckless disregard of the rights of the accused plaintiff without any reasonable grounds for belief that the plaintiff was guilty.

29. Upon information and belief, the accusatory instrument sworn to by New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, was false in that the plaintiff never committed the aforementioned crimes on the date, time,

and location in question.

30. Upon information and belief, nevertheless, the District Attorney continued to prosecute the case until June 24, 2022, on which date, plaintiff was acquitted and the case was dismissed and sealed.

31. Upon information and belief, as a result of the malicious prosecution, false arrest, illegal imprisonment, detention and search, the plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

32. That by reason of the foregoing, plaintiff has suffered damages in an amount to be determined upon the trial of this action.

33. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT AND BATTERY

34. Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "16" through "23," and, "28" through "30" with the same force and effect as if more fully and at length set forth herein.

35. Upon information and belief, New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, and other police officers of the New York City Police Department, whose name(s)

and shield number(s) are unknown to the plaintiff, without just cause or provocation and with great force and violence, seized, assaulted and laid hold of the plaintiff including but not limited to causing handcuffs to be tightly placed upon the wrists of plaintiff.

36. Upon information and belief, New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, and other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, acting as agents and on behalf of the defendant and within the scope of their employment, intentionally, willfully and maliciously assaulted and battered plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact in the plaintiff, and, in a hostile and/or offensive manner touched, grabbed and/or struck the plaintiff, without plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery in and about plaintiff's wrists, body and limbs.

37. Upon information and belief, that as a result of the intentional assault and battery committed by the defendant, its' agents, servants and employees, acting within the scope of their authority, and without probable and reasonable cause, the Plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to

his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

38. That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial of this action.

39. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENCE

40. Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "16" through "23," "28" through "30 ," "35," and, "36," with the same force and effect as if more fully and at length set forth herein.

41. Upon information and belief, the negligence of Defendant The City of New York (CITY) consisted of the following:

A. New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; and,

B. In directing and/or authorizing New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, to stop the

plaintiff without first making a proper investigation as to whether there was any legal basis for the plaintiff's stop; and

C. In directing and/or authorizing New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, to arrest the plaintiff without first making a proper investigation as to whether there was any legal basis for the plaintiff's arrest; and

D. In directing and/or authorizing New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, to search the plaintiff's residence without first making a proper investigation as to whether there was any legal basis for the search of the plaintiff's residence; and

E. In that the Defendant and its' employees were otherwise careless, reckless and negligent in which the stop, search and arrest of the plaintiff was carried out by the Defendant's employees.

42. Upon information and belief, that as a result of the negligence of the Defendant in causing said arrest, the Plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

43. That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial

of this action.

44. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CARELESSLY AND
RECKLESSLY FAILING TO PROPERLY TRAIN AND SUPERVISE ITS'
EMPLOYEES**

45. Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "16" through "23," "28" through "30 ," "35," "36," and, "41" with the same force and effect as if more fully and at length set forth herein.

46. Upon information and belief, the defendant CITY negligently, carelessly and recklessly failed to properly train and supervise its' employees, in particular, New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, who conducted the investigation leading up to the plaintiff's arrest; and directed and/or authorized New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, to arrest the plaintiff; and New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, and/or other police officers of the New York City Police Department, whose name(s) and shield

number(s) are unknown to the plaintiff, who arrested the Plaintiff; in that Defendant CITY failed to train its' employee(s) in the proper manner in which to stop, search and arrest persons in general and the plaintiff in particular; and to otherwise act as reasonably, prudent police officers; failing to give the proper instruction to Defendant's employee(s) as to their deportment, behavior and conduct as representatives of their employers; and, in that the Defendant CITY's agents, servants and employees were otherwise reckless, careless and negligent.

47. Upon information and belief, that as a result of the defendant CITY's negligent, careless and reckless training and supervising of its' employees which culminated in causing plaintiff's arrest and prosecution, Plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

48. That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial of this action.

49. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR RECKLESS HIRING AND/OR
RETENTION OF DEFENDANTS' EMPLOYEES**

50. Plaintiff repeats, reiterates and realleges each and

every paragraph of the Complaint designated "16" through "23," "28" through "30 ," "35," "36," "41," and, "46" with the same force and effect as if more fully and at length set forth herein.

51. Upon information and belief, the reckless hiring and/or retention of defendant CITY's employees consisted of carelessly and recklessly hiring and retaining as and for its employee(s), New York Police Department [NYPD] Detective VINCENT FERRANTE, Tax Registration #:943229, of Tactical Narcotics Team-Queens, and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, who conducted the investigation leading up to the plaintiff's arrest in that the said Defendant employee(s) lacked the experience, deportment and ability to be employed by Defendant CITY; in that Defendant CITY failed to exercise due care and caution in its hiring practices, and in particular, in hiring its' employee(s) who lacked the mental capacity and the ability to function as an employee(s) of the Defendant CITY ; in that the Defendant, THE CITY OF NEW YORK, failed to investigate the above named employee(s) back ground; in that the employee(s) lacked the maturity, sensibility and intelligence to be employed by the Defendant CITY; in that the Defendant CITY knew of the lack of ability, experience, deportment and maturity of said employee(s) when Defendant CITY hired him/them to be an employee(s); and, in that the Defendant CITY, its' agents, servants and employees were otherwise careless, negligent and reckless.

52. Upon information and belief, that as a result of the reckless hiring and/or retention of defendant CITY's employees which culminated in causing plaintiff's arrest, the Plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

53. That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial of this action.

54. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR SEVENTH CAUSE OF ACTION FOR DEPRIVATION OF FEDERALLY SECURED RIGHTS UNDER FEDERAL CIVIL RIGHTS LAW 42 USC §1983

55. Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "16" through "23," "28" through "30," "35," "36," "41," "46," and "51" with the same force and effect as if more fully and at length set forth herein.

56. Upon information and belief, on or about **Friday, February 22, 2019 at approximately 11:30 PM** in front of plaintiff's residence, 111-50 145 Street, Jamaica, NY 11435, at which time and place defendant's employee(s), New York Police Department [NYPD] Detective VINCENT FERRANTE of Tactical Narcotics Team-Queens, Tax Registration #:943229, and/or other

New York Police Department [NYPD] police officers whose names, shield numbers and tax registration numbers are not known to plaintiff, as part of his/their regular and official employment as a police officer(s) for the defendant, THE CITY OF NEW YORK, arrested the plaintiff without either an arrest warrant or search warrant and without probable cause, for allegedly committing the following offenses on that date inside his residence:

Penal Law §265.03(3), Criminal Possession of a Weapon in the Second Degree, a class C felony;

Penal Law §265.03(1)(b), Criminal Possession of a of a Weapon in the Second Degree, a class C felony;

Penal Law §265.02(1), Criminal Possession of a Weapon in the Third Degree, a class D felony;

Penal Law §265.01-b, Criminal Possession of a Firearm, a class E felony;

Penal Law §221.05, Unlawful Possession of Marijuana, a violation and not a crime.

57. Upon information and belief, as plaintiff was lawfully at his residence, at which time and place defendant's employee(s), New York Police Department [NYPD] Detective VINCENT FERRANTE of Tactical Narcotics Team-Queens, Tax Registration #:943229, and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, having the real and apparent ability to cause imminent harmful and offensive bodily contact and the power and authority to arrest and imprison the

plaintiff did so threaten these acts upon the plaintiff, who, after continuing his/her lawful activity, was handcuffed by the defendant's employee(s), New York Police Department [NYPD] Detective VINCENT FERRANTE of Tactical Narcotics Team-Queens, Tax Registration #:943229, and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff.

58. Upon information and belief, immediately thereafter, aforementioned defendant CITY's agents, servants and employees falsely arrested and imprisoned the plaintiff, severely assaulted and battered the plaintiff and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York, handcuffed him and threatened plaintiff with the possible use of firearms and weapons and the use of physical force; in that they continued to assault and batter the plaintiff and to imprison him without any conduct on the part of the plaintiff to so warrant, to wit:

a) in that all of the actions of the defendant CITY's, agents, servants and employees, were committed with the intention to cause bodily and mental injury to the plaintiff, to arrest, restrain and imprison the plaintiff without his consent, the plaintiff was at all times conscious of his arrest, did not consent to the false arrest and the imprisonment were not otherwise privileged; and,

b) the arrest and imprisonment were not justified by probable cause or other legal privilege; defendant

CITY's agents, servants and employees, acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of Queens, and under the authority of their office as police officers for said City, falsely charged the plaintiff with allegedly violating Penal Law §265.03(1), Criminal Possession of a Weapon in the Second Degree, a class C felony; Penal Law §265.01-b(1), Criminal Possession of a Firearm, a class E felony; Penal Law §221.15, Criminal Possession of Marijuana in the Fourth Degree, a class A misdemeanor; and, Penal Law §221.05, Unlawful Possession of Marijuana, a violation and not a crime, all with respect to a firearm and marijuana in the residence, although the defendant CITY's police

officer(s), acting in such capacity, knew that such charge(s) were false; and,

c) in that the defendant CITY's agents, servants and employees caused an assault and battery when they in a hostile and/or offensive manner threatened, touched, grabbed and/or struck the plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff, all without warrant, probable cause or any lawful cause whatever; and,

d) that the defendant CITY's agents, servants and employees failed to adequately and properly hire,

retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants' agents, servants and employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public including plaintiff; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendant CITY; and, e) the failure of the defendant CITY's agents, servants and employees to hire, train, supervise, discipline or in any other way control the police officers, in the exercise of their functions; in that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the State and City of New York including plaintiff; and, f) due to the acts of the defendant CITY's agents, servants and employees herein, the failure of the City of New York to discipline and properly hire the police officers and the continued employment of the police officers presents a clear and present danger

to the citizens of the City and State of New York;
and,

g) that the said prosecution and criminal charges and hearings were instituted and procured by the defendant CITY's agents, servants and employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor.

That the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause; and,

h) that the defendant CITY's agents, servants and employees permitted the use of policy and/or drafted policy that was violative of the constitutional rights of the above named plaintiff; and, in that each and all of the acts of the defendant CITY's agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Queens, and under the authority of their office as police officers for said city and county.

59. Upon information and belief, plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, and deprived of his constitutional rights as set forth in the Constitution of the United States, 42 U.S.C. §1983, and, the Constitution of

the State of New York.

60. Upon information and belief, as a direct result of the illegal actions and conduct on the part of the defendant, CITY's agents, servants and employees, plaintiff was falsely arrested and imprisoned, assaulted and battered, and compelled to be arraigned and appear in Criminal Court of the City of New York, County of Queens, and, in Supreme Court of the State of New York, County of Queens and to undergo a criminal proceeding until June 24, 2022, on which date, upon information and belief, the plaintiff was acquitted of the firearm charge and the marijuana charge was dismissed as defective.

61. Upon information and belief, that at all times hereinafter mentioned, New York Police Department [NYPD] Detective VINCENT FERRANTE of Tactical Narcotics Team-Queens, Tax Registration #:943229, and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, was/were employed in their respective capacities by the defendant THE CITY OF NEW YORK and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

62. Upon information and belief, that at all times hereinafter mentioned, defendant CITY's employees, New York Police Department [NYPD] Detective VINCENT FERRANTE of Tactical Narcotics Team-Queens, Tax Registration #:943229, and/or other police officers of the New York City Police Department, whose

name(s) and shield number(s) are unknown to the plaintiff, was/were acting pursuant to orders and directives from the defendant THE CITY OF NEW YORK.

63. Upon information and belief, that during all times hereinafter mentioned, the defendant CITY's police officers and each of them, separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and the police officers here, separately and in concert, engaged in the illegal conduct here mentioned to the injury of the plaintiff, and deprived plaintiff of the rights, privileges and immunities secured to plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States.

64. Upon information and belief, the Police Officers of the defendant THE CITY OF NEW YORK and its individual members who are agents, servants and employees of defendant CITY, together with persons unknown to plaintiff, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of illegal harassment, assault and battery, false imprisonments and arrests at the time said plaintiff was lawfully at his residence in the County of Queens, City and State of New York, in denial of rights, privileges and immunities guaranteed plaintiff and other citizens by the Constitution of the United States.

65. Upon information and belief, this systematic pattern of conduct consists of a large number of individual acts of

violence, intimidation, false arrest and false imprisonment visited on plaintiff and other citizens by members of the police department of defendant THE CITY OF NEW YORK, acting in concert with persons unknown to plaintiff and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

66. Upon information and belief, although defendant CITY knew or should have known of the fact that this pattern of conduct was carried out by its' agents, servants and employees, the defendant THE CITY OF NEW YORK, has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

67. Upon information and belief, the unlawful and illegal conduct of the defendant CITY's agents, servants and employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of plaintiff to be informed of the

nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and,

c) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

68. Upon information and belief, that by reason of the aforesaid violations, false arrest and false imprisonment, assault and battery caused by the defendant CITY's agents, servants and employees who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendant, their agents, servants and employees violated 42 U.S.C. §1983 in that the defendant CITY's agents, servants and employees acted as persons who under color of any statute, ordinance, regulation, custom or usage of the City of New York, subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the plaintiff thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation,

and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiff.

69. Upon information and belief, that by reason of the aforesaid intentional assault and battery, the false arrest and false imprisonment, and deprivation of his rights and liberties as guaranteed by the aforementioned constitutions, by the defendant CITY's agents, servants and employees, acting within the scope of their authority, and without any probable or reasonable cause, the plaintiff suffered great bodily injury in and about the wrists, [if applicable: and head, neck, back, body and limbs] and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering, and that he was otherwise damaged.

70. That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial of this action.

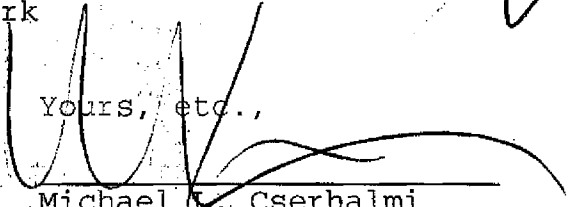
71. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff **QUENTIN WILLIAMS** demands Judgment against the Defendant in the first cause of action in an amount to be determined upon the trial of this action; and Plaintiff **QUENTIN WILLIAMS** demands Judgment against the Defendant in the

second cause of action in an amount to be determined upon the trial of this action; and Plaintiff **QUENTIN WILLIAMS** demands Judgment against the Defendant in the third cause of action in an amount to be determined upon the trial of this action; and Plaintiff **QUENTIN WILLIAMS** demands Judgment against the Defendant in the fourth cause of action in an amount to be determined upon the trial of this action; and Plaintiff **QUENTIN WILLIAMS** demands Judgment against the Defendant in the fifth cause of action in an amount to be determined upon the trial of this action; and Plaintiff **QUENTIN WILLIAMS** demands Judgment against the Defendant in the sixth cause of action in an amount to be determined upon the trial of this action; and Plaintiff **QUENTIN WILLIAMS** demands Judgment against the Defendant in the seventh cause of action in an amount to be determined upon the trial of this action; together with the costs and disbursements and counsel fees of this action.

Dated: Great Neck, New York
April 29, 2023

Yours, etc.,


Michael L. Cserhalmi
MICHAEL L. CSERHALMI, P.C.
Attorneys for Plaintiff(s)
38 Maple Drive
Great Neck, NY 11021
(516) 482-6633 [OFFICE]
(516) 610-6633 [CELL]
MLC6633@VERIZON.NET

ATTORNEY VERIFICATION

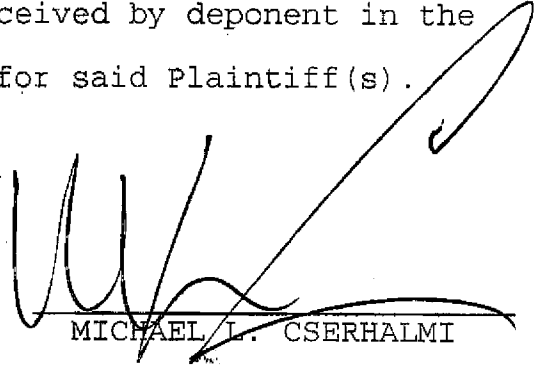
STATE OF NEW YORK)
 : SS.:
COUNTY OF NASSAU)

MICHAEL L. CSERHALMI, ESQ., a member of the firm of MICHAEL L. CSERHALMI, P.C., duly admitted to practice in the Courts of the State of New York, does hereby affirm under penalty of perjury:

I am the attorney for the Plaintiff(s) in the within entitled action and have read the foregoing pleading and know the contents thereof and the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief and as to those matters, I believe them to be true.

Deponent further states that the reason why this verification is not made by the Plaintiff(s) is that said Plaintiff(s), upon information and belief, does/do not reside within the County wherein deponent has his office. That the grounds of deponent's belief as to all matters not therein stated to be alleged upon his own knowledge are investigations and information received by deponent in the course of his duties as attorney for said Plaintiff(s).

Dated: Great Neck, New York
 April 29, 2023



MICHAEL L. CSERHALMI

Index No:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

QUENTIN WILLIAMS,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, New York Police
Department detective VINCENT FERRANTE,
Tax Registration #:943229, of Tactical
Narcotics Team-Queens, and JOHN DOES -
Police Officers as yet unidentified,

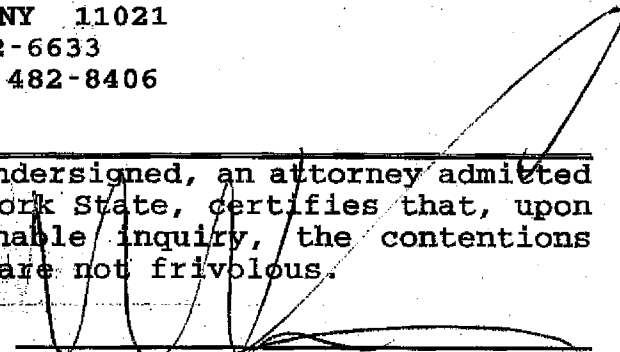
Defendant(s).

SUMMONS AND COMPLAINT

MICHAEL L. CSERHALMI, P.C.
Attorneys for Plaintiff(s)Office and Post Office Address
38 Maple Drive
Great Neck, NY 11021
(516) 482-6633
FAX: (516) 482-8406

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

DATED: April 29, 2023


MICHAEL L. CSERHALMI, Esq.Service of a copy of the within
admitted.

is hereby

Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE:

Notice of Entry

That the within is a () true copy of an
entered in the office of the Clerk of the within named Court
on , 2023.

Notice of Settlement